



QUANTYX GLOBAL MED-LEGAL SOLUTIONS PRIVATE LIMITED

CIN: U82990AP2026PTC124561

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NON-DISCLOSURE AGREEMENT (NDA)

Medical Records Review Processing Services

This Non-Disclosure Agreement ("Agreement") is entered into as of _____ ("Effective Date") by and between:

Quantyx Global Med-Legal Solutions, Pvt. Ltd. ("Service Provider"), a private limited company engaged in medical records review and med-legal processing services, and

_____ ("Disclosing Party"), a law firm that will be disclosing Confidential Information to the Service Provider in connection with medical records review processing services.

WHEREAS, the Law Firm wishes to engage the Service Provider to provide medical records review, analysis, chronology preparation, summarization, and related medico-legal processing services and;

WHEREAS, in connection with the provision of such Services, the Law Firm will disclose to the Service Provider certain confidential and proprietary information, including but not limited to protected health information ("PHI") subject to the Health Insurance Portability and Accountability Act ("HIPAA"), client information, case details, medical records, and other sensitive data;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Definition of Confidential Information

For purposes of this Agreement, "Confidential Information" means all information disclosed by the Law Firm to the Service Provider, whether orally, in writing, electronically, or by any other means, including but not limited to:

- Medical records, charts, reports, test results, imaging studies, and all other healthcare-related documentation;
- Protected Health Information (PHI) as defined under HIPAA and applicable privacy regulations;
- Client names, personal identifying information, and case details;
- Expert opinions, work product, and attorney-client privileged communications shared for processing purposes;
- Business information, including fee arrangements, client lists, and operational procedures;

+91-70751-84488



D. No.: 22-20-6/ND/B-204, Nandanam Apartments, Tirupati South, Tirupati (Urban)
Chittoor – 517501, Andhra Pradesh, India.



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- Any other information that is marked as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

2. Exclusions from Confidential Information

Confidential Information does not include information that:

- Was known to the Service Provider prior to disclosure by the Law Firm, as evidenced by written records;
- Is or becomes publicly available through no breach of this Agreement by the Service Provider;
- Is rightfully received by the Service Provider from a third party without breach of any confidentiality obligation;
- Is independently developed by the Service Provider without use of or reference to the Confidential Information.

3. Obligations of the Service Provider

The Service Provider agrees to:

- **Maintain Confidentiality:** Hold all Confidential Information in strict confidence and not disclose it to any third party without the prior written consent of the Law Firm;
- **Limited Use:** Use the Confidential Information solely for the purpose of providing the Services to the Law Firm and for no other purpose;
- **Protection:** Implement and maintain reasonable administrative, physical, and technical safeguards to protect the Confidential Information from unauthorized access, use, or disclosure, including but not limited to encryption, secure access controls, and employee training;
- **HIPAA Compliance:** Comply with all applicable provisions of HIPAA, the Health Information Technology for Economic and Clinical Health Act ("HITECH Act"), and their implementing regulations with respect to PHI disclosed pursuant to this Agreement;
- **Limited Disclosure to Employees:** Disclose Confidential Information only to those employees, contractors, and subcontractors who have a legitimate need to know for the purpose of providing the Services, and only after such persons have agreed in writing to confidentiality obligations no less restrictive than those contained herein;
- **No Copying or Modification:** Not copy, modify, reverse engineer, or create derivative works from the Confidential Information except as necessary to provide the Services;
- **Prompt Notification:** Immediately notify the Law Firm in writing of any unauthorized access, use, or disclosure of Confidential Information of which the Service Provider becomes aware.

4. Return or Destruction of Confidential Information

Upon completion of the Services, termination of any service agreement between the parties, or upon written request by the Law Firm, the Service Provider shall, at the Law Firm's option,

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either return to the Law Firm or securely destroy all Confidential Information in its possession, custody, or control, including all copies, notes, summaries, and extracts thereof, in any form or media. The Service Provider shall provide written certification of such return or destruction within thirty (30) days of the request.

5. Compelled Disclosure

If the Service Provider is compelled by law, court order, or governmental authority to disclose any Confidential Information, the Service Provider shall: (a) provide the Law Firm with prompt written notice of such requirement so that the Law Firm may seek a protective order or other appropriate remedy; (b) cooperate with the Law Firm in seeking such protective order or remedy; and (c) if disclosure is required, disclose only that portion of the Confidential Information that is legally required to be disclosed. The Service Provider shall use reasonable efforts to obtain assurances that confidential treatment will be accorded to any Confidential Information so disclosed.

6. No License or Rights Granted

Nothing in this Agreement shall be construed as granting any rights to the Service Provider, by license or otherwise, in or to the Confidential Information, except as expressly set forth herein. All Confidential Information shall remain the exclusive property of the Law Firm and/or its clients.

7. Term and Termination

This Agreement shall commence on the Effective Date and shall continue in effect until terminated by either party upon thirty (30) days' prior written notice to the other party. Notwithstanding any termination, the obligations of the Service Provider under Sections 3, 4, 6, 8, 9, 10, and 11 shall survive for a period of seven (7) years from the date of termination or for such longer period as may be required by applicable law or regulation, including HIPAA requirements for medical records retention.

8. Remedies

The Service Provider acknowledges that the Confidential Information is valuable and unique, and that disclosure of such information would cause irreparable harm to the Law Firm and its clients for which monetary damages would be an inadequate remedy. Accordingly, the Service Provider agrees that the Law Firm shall be entitled to seek equitable relief, including injunction and specific performance, in the event of any breach or threatened breach of this Agreement by the Service Provider, in addition to any other remedies available at law or in equity. The Service Provider further agrees that no bond or other security shall be required in connection with such equitable relief.

9. No Warranty

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ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED. THE LAW FIRM MAKES NO REPRESENTATIONS OR WARRANTIES REGARDING THE ACCURACY OR COMPLETENESS OF THE CONFIDENTIAL INFORMATION.

10. Indemnification

The Service Provider agrees to indemnify, defend, and hold harmless the Law Firm, its clients, and their respective officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from any breach of this Agreement by the Service Provider or any unauthorized use or disclosure of Confidential Information by the Service Provider or its employees, contractors, or subcontractors.

11. General Provisions

- **Entire Agreement:** This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior or contemporaneous agreements, whether written or oral, relating to such subject matter.
- **Amendment:** This Agreement may not be amended, modified, or supplemented except by a written instrument executed by both parties.
- **Severability:** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- **Governed by:** This Agreement shall be governed by the laws of the State of [Insert State].
- **Waiver:** No waiver of any provision of this Agreement shall be deemed or shall constitute a waiver of any other provision, nor shall any waiver constitute a continuing waiver.
- **Assignment:** The Service Provider may not assign or transfer this Agreement or any of its rights or obligations hereunder without the prior written consent of the Law Firm. Any attempted assignment in violation of this provision shall be void.
- **Notices:** All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed facsimile or email, or three (3) days after being sent by certified or registered mail, return receipt requested, to the addresses set forth below or to such other address as either party may specify in writing.
- **Counterparts:** This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall have the same force and effect as original signatures.

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date first written above.

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QUANTYX GLOBAL MED-LEGAL SOLUTIONS, PVT. LTD.

(Service Provider)

Name: K.V. Raju

Title: Director

Date: _____

LAW FIRM:

(Disclosing Party)

Firm Name: _____

Contact Person Name: _____

Title: _____

Date: _____

CONTACT INFORMATION FOR NOTICES:

Service Provider:

Quantyx Global Med-Legal Solutions, Pvt. Ltd.

Email: support@quantyxg.com

Phone: +91-70751-84488

Law Firm:

Firm Name: _____

Address: _____

Email: _____

Phone: _____

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